

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

JAMES JIRICEK; and	)	
LORNA LACEFIELD,	)	
	)	
Plaintiffs,	)	
v.	)	Case No.
	)	
	)	
BRYCE A. PEARSON; and	)	
BOCKMANN, INC.,	)	
	)	
Defendants.	)	
	)	

COMPLAINT

Plaintiffs, James Jiricek and Lorna Lacefield, by and through counsel Arthur E. Rhodes and Dustin L. DeVaughn of DeVaughn James Injury Lawyers and for their claims against the Defendants, Bryce A. Pearson and Bockmann, Inc., allege and state:

A. PARTIES

1. Plaintiffs are residents of Kansas and citizens that reside at 1334 Ave I, Ellsworth, KS 67439.
2. Defendant, Bryce A. Pearson, is a citizen of Lancaster County, Nebraska and may be served at Defendant's residence at 415 W. 9th St., Hickman, Nebraska 68372.
3. Defendant, Bockmann, Inc., is a foreign for-profit corporation with its principal place of business within the State of Nebraska. It may be served through its registered agent, Chris Bockman, 1450 Centerpark Rd., Lincoln, NE 68512-0000.

B. JURISDICTION AND VENUE

4. This Court has jurisdiction over the persons and subject matter.

5. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.
6. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.

C. NATURE OF ACTION

7. This is a personal injury action arising out of a motor vehicle collision between Plaintiffs and Defendants.

D. NEGLIGENCE

8. At all times relevant herein. Defendant, Bryce A. Pearson was an employee and or agent (or contract driver) of Defendant, Bockmann, Inc. Defendant, Bockmann, Inc. is liable for the negligence of its employee or agent under the legal doctrines of vicarious liability and respondeat *superior*.
9. On December 5, 2019, Defendant, Bockmann, Inc.'s employee and or agent, Bryce A. Pearson was operating a box truck in the course of his employment southbound on Highway K-111 in Ellsworth County, Kansas.
10. Meanwhile, Plaintiff James Jiricek was operating a motor vehicle traveling eastbound on Highway K-140. Plaintiff Lorna Lacefield was a passenger in the motor vehicle being operated by Plaintiff James Jiricek.
11. Defendant Bockmann, Inc.'s employee or agent, Bryce A. Pearson negligently failed to a stop sign located at the intersection of Highway K-111 and Highway K-140 in Ellsworth County, Kansas and struck Plaintiffs' vehicle.

12. This incident and all of the resulting personal injuries and other damages were a direct result of the negligence, omissions and fault of the Defendant's employee and or agent which includes, but is not limited to:
 - a. Failure to stop at a stop sign;
 - b. Inattentive operation of a motor vehicle;
 - b. Failure to keep a proper lookout;
 - c. Failure to use ordinary care;
 - d. Failure to give warning;
 - e. Failure to take evasive action; and
 - f. Careless driving.
13. Defendant Bockmann, Inc. was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Bryce A. Pearson, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to members of the public.
14. As a result of Defendants' negligence, Plaintiffs sustained serious bodily injuries and damages, medical expenses, lost wages and have incurred non-economic damages such as pain and suffering. Furthermore, Plaintiffs reasonably expect to incur future medical expenses, future lost wages and future non-economic damages such as pain and suffering in the future.

WHEREFORE, Plaintiffs pray for judgment against Defendants in an amount in excess of Seventy-Five Thousand Dollars (\$75,000.00), for costs herein, and for such other and further relief as the Court deems just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

By: /s/ Arthur E. Rhodes

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Attorneys for Plaintiff

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiffs demand a pretrial conference and trial by a jury of twelve (12) persons in this matter.

By: /s/ Arthur E. Rhodes

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Attorneys for Plaintiff

DESIGNATION FOR PLACE OF TRIAL

Plaintiffs designate Wichita, Kansas as the place for trial of this matter.

By: /s/ Arthur E. Rhodes

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